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Counterfactual Blue Ember Opening Brief

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed March 9, 2026

Blue Ember accepts the training order’s assumed preservation premise for this branch alone. The question is therefore merits, not continuity: could every reasonable jury presented with the Cobalt Finch record be compelled to impose Granite Heron’s entire \$1,500,000 net mitigation deduction? The answer is no because the evidence described a possible accelerated course with unresolved qualification, material execution risk, and no reliable success probability.

The jury did not disregard mitigation. It found a \$300,000 net reduction after hearing both experts, the capacity witness, Dr. Mira Solis, and the contemporaneous records. That intermediate answer acknowledged an opportunity while discounting the defense model’s assumption that \$1,800,000 of delay likely would disappear. Rule 50 does not authorize a court to replace permissible evidentiary weighing with its preferred economic scenario.

Blue Ember asks the Court to reverse the counterfactually preserved JMOL and vacate the \$2,700,000 amended judgment. If that relief were granted, Rule 50(c) would require attention to the district court’s conditional new-trial ruling. If JMOL is affirmed, however, the conditional ruling remains dormant, and no decision about its Rule 59 basis or damages-only scope is necessary.

Disclosure, counsel, and related proceedings

Blue Ember Biologics, LLC remains privately owned. Its parent and only member, Blue Ember Holdings, Inc., is a privately held Delaware corporation based in Asheville. No public corporation holds a ten-percent-or-greater interest in either entity. Maya Holt and Jonas Bell of Holt Bell PLLC appear for Blue Ember in this fictional branch. The ownership disclosure remains accurate for the date of this submission.

Granite Heron is the appellee and judgment debtor under the amended district judgment. Cobalt Finch Bioprocessing is a nonparty whose Durham capacity proposal supplies mitigation evidence; it has no disclosed ownership interest in either litigant. Aurora Quay Manufacturing Center, Solstice Gate Analytics, and the named experts likewise appear only through the synthetic record.

The appeal arises from one December 15, 2025 amended judgment. The branch order does not create another judgment or revise the two actual Rule 50(a) sources. It directs the parties to analyze an expressly preserved hypothetical while keeping every event, amount, facility, witness, and posttrial ruling otherwise fixed.

No related appeal or real-world proceeding exists. All references to appellate activity in this brief concern the isolated never-filed docket shown in the caption. Blue Ember requests decision on the briefs under the schedule already entered and does not seek oral argument unless the panel concludes that questions about the Rule 50 merits standard would benefit from it.

Jurisdiction and filing time

The district court had diversity jurisdiction over the fictional contract controversy. Its December 15 order disposed of Granite Heron's timely combined Rule 50(b) and Rule 59 motion, altered the monetary judgment, and left no unresolved claim. The resulting amended judgment is a final decision reviewable under 28 U.S.C. § 1291.

Blue Ember filed its notice on January 12, 2026. The November 10 posttrial motion was made within twenty-eight days of the October 15 original judgment and restarted the civil appeal period until disposition. The notice therefore fell within the thirty-day period measured from December 15 under Federal Rule of Appellate Procedure 4(a).

The preservation variation changes no jurisdictional event. It assumes additional content in two pre-verdict presentations but leaves the verdict, both judgments, posttrial motion, and notice dates untouched. Final-decision jurisdiction does not depend on whether the asserted mitigation ground ultimately warrants judgment as a matter of law.

This counterfactual brief is timely under the February 2 scheduling order. Opening materials and the jointly certified appendix are submitted March 9; the response and reply dates remain April 8 and April 20. Compliance with that branch schedule does not record any filing on another docket or modify the actual litigation record.

Questions presented

First, after assuming that Granite Heron expressly raised mitigation in both Rule 50(a) motions, did the district court still err by holding that no reasonable jury could select a net deduction below \$1,500,000? The issue requires de novo review of the evidence in Blue Ember's favor without weighing witnesses or choosing among competing economic inferences.

Second, if the mitigation JMOL is reversed, what consequence follows from the conditional Rule 59 ruling? Rule 50(c)(2) recognizes that a properly entered conditional new-trial determination may become operative when renewed judgment falls, subject to appellate review and direction.

Third, only if the Court must reach that conditional determination, did the district court permissibly find the monetary verdict against the clear weight of the evidence and limit any new trial to gross damages and mitigation? Blue Ember preserves its objections while recognizing that these questions need not be decided if the Court affirms JMOL.

Fourth, what judgment should issue? Blue Ember requests relief tied to the component actually reversed. It does not ask the panel to alter contract liability or shipment causation, and it does not claim that the counterfactual premise changes the original district sources or licenses use of this branch as historical proof.

The shipment loss and resulting choices

Granite Heron accepted validation lot BE214-VL-2409A at 11:20 Eastern Daylight Time on September 12, 2024. During a Fletcher staging transition, refrigeration lost power and an alert entered an inactive queue. Monitor CTX9-44721 recorded an excursion above minus sixty degrees from 13:08 until 14:02 and a peak of minus 42.8 degrees at 13:37.

Blue Ember received the sealed load at 15:26, quarantined it, and opened deviation BE-QA-DEV-2024-0912. Confirmatory testing found measurable activity in sampled material but did not resolve validation suitability across the lot. On September 16, authorized quality reviewers rejected the lot for its intended validation campaign while preserving samples and source records.

The replacement campaign proceeded at the already qualified Aurora Quay facility beginning March 3, 2025. Blue Ember traced \$1,350,000 to the rejected lot, \$850,000 to incremental replacement work, and \$2,000,000 to a bounded delay model. Those categories together formed the \$4,200,000 gross position submitted to the jury.

Granite Heron separately asserted failure to mitigate based on an October capacity proposal. The legal dispute does not erase the carrier event or imply that the rejected lot could be restored. It asks how much of the caused delay a reasonable sponsor could have reduced through a different site while accounting for the cost and risk of that alternative.

The isolated preservation assumption

The February 2 variation directs the Court to assume that Granite Heron identified mitigation when Blue Ember rested and again after all evidence. Each assumed motion named Cobalt Finch, the December 2 campaign start, \$1,800,000 in claimed gross avoidance, \$300,000 in incremental expense, and a requested \$1,500,000 net deduction.

Blue Ember also is deemed to have received an opportunity to answer, clarify the record, or seek a limited reopening before jury submission. It relied on the qualification file, Calder's testimony, Solis's decision evidence, and Brooks's analysis. The assumed district court denied both motions and allowed the separated verdict questions to proceed.

For this appeal, Blue Ember therefore does not argue that Rule 50(b) introduced an unmentioned ground. *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), makes a distinct basis first raised after verdict unavailable while retaining the general sufficiency issue raised under Rule 50(a). The branch avoids that defect by assuming that the precise mitigation basis and relief were presented twice before verdict.

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), concerns variation between a sufficiency issue preserved in Rule 50(b) and the appellate theory supporting it. It does not supply the assumed Rule 50(a) preservation here. The merits standard remains exacting and independent from preservation.

That concession is tightly bounded. It does not rewrite the actual causation-only motions, turn the premise into a district filing, or establish that Granite Heron carried its affirmative-defense burden. Treating an issue as timely raised tells the Court which issue it may review; it does not dictate the evidentiary outcome of that review.

Cobalt Finch offered real but conditional capacity

Cobalt Finch sent a written proposal on October 2, 2024 for a Durham campaign beginning December 2. It held an identified suite until October 4 at 17:00 Eastern Daylight Time. The facility possessed relevant development-biologics capability, suitable scale, frozen receiving, single-use systems, trained personnel, and potential analytical support.

The offer did not say the site was ready for BE-214. Cobalt Finch had never manufactured that program, detailed equipment comparison remained incomplete, method responsibility had not been allocated, and no sponsor audit had occurred. Acceptance would reserve capacity and begin staged spending; it would not authorize production regardless of later findings.

The proposed path called for an October 7 kickoff, concentrated review, an October 14–15 assessment, transfer activity into November, an engineering exercise during November 11–15, and a November 22 readiness decision. Initial campaign completion was projected near December 20, with testing, record review, and disposition still to follow.

Calder described the route as feasible with elevated risk and made no guarantee. Another sponsor's later booking proved the capacity was genuine, not that BE-214 would meet every milestone. The mitigation issue therefore presented a mixed record: real opportunity, material schedule value, unfinished program work, and a meaningful chance of delay or failure.

Blue Ember evaluated rather than ignored the option

Blue Ember's technical, quality, operations, and finance personnel reviewed the proposal during the short hold. They requested an equipment matrix, analytical allocation, audit information, training plans, material lead times, cancellation terms, and the standard for the final readiness gate. Cobalt Finch answered what it could and explained which questions required controlled documents after acceptance.

The sponsor compared that accelerated route with Aurora Quay, an established facility reserved for March 3. An earlier start offered substantial upside, but a failed transfer could consume scarce personnel and staged expense while leaving the March campaign necessary. Blue Ember chose the later dependable course and released the Durham hold before expiration.

The decision file did not call Cobalt Finch incapable or legally prohibited. It credited general capability and potential acceleration while recording unresolved fit and execution confidence. That balanced assessment matters because mitigation asks whether the response was reasonable under circumstances known then, not whether later expert modeling can construct a successful alternative with hindsight.

Reasonable jurors could conclude that Blue Ember should have pursued some portion of the opportunity and still reject Park's full outcome. That is exactly what the \$300,000 net deduction reflects. The verdict need not correspond to either expert's endpoint when the record permits intermediate judgments about probability, timing, and avoidable loss.

The verdict separated every monetary component

The special verdict first fixed contract liability and proximate causation. It then itemized gross damages as \$1,350,000 for cost embodied in the rejected lot, \$850,000 for replacement and associated incremental work, and \$2,000,000 for bounded delay. The three categories total \$4,200,000 without incorporating mitigation.

On Granite Heron's affirmative defense, jurors found a \$300,000 net reduction. The instructions required them to consider reasonable alternative expense before stating a net number and prohibited using the alternative to reduce the original-lot value merely because an earlier campaign might shorten delay. The October 15 judgment therefore was \$3,900,000.

Granite Heron's November 10 renewed motion sought a different deduction. Park treated \$1,800,000 of delay as avoidable and subtracted the complete \$300,000 transfer estimate, producing \$1,500,000. The district court adopted that model, amended the award to \$2,700,000, and conditionally ordered another financial trial if JMOL later ceased to control.

The arithmetic is not disputed. The disagreement concerns whether the record compelled each factual input. A mathematically correct model remains only as strong as its assumptions about successful qualification, schedule completion, residual delay, and reasonableness. Those matters were contested by admissible evidence and assigned to the jury.

Review of renewed judgment is de novo

An appellate court reviews a Rule 50 judgment without deference to the district court's preferred factfinding. The question is whether, viewing evidence and reasonable inferences in favor of the verdict winner, a reasonable jury had a legally sufficient basis for its answer. Credibility choices and comparative evidentiary weight may not be reassigned to the judge.

That standard differs from Rule 59. A district court considering a new trial may weigh evidence and assess whether a verdict conflicts with the clear weight, rests on false proof, or would produce injustice. The existence of that separate authority confirms that judgment as a matter of law cannot be justified merely because the judge believes another number is better supported.

Granite Heron bore the mitigation burden under North Carolina law. *Thermal Design, Inc. v. M&M Builders, Inc.* places on the breaching party both unreasonable failure to reduce loss and the amount of reduction. *Clark v. Bichsel* likewise treats mitigation as an affirmative defense rather than a shift in Blue Ember's gross-damages burden.

Accordingly, every reasonable inference about incomplete qualification, technical risk, probability, and timing belongs to Blue Ember at the JMOL stage. The court may not presume a successful December course and require Blue Ember to disprove it. Granite Heron must show that no rational jury could choose a smaller supported net deduction.

Express preservation does not satisfy the merits burden

The assumed motions give Granite Heron procedural access to Rule 50(b); they do not convert disputed evidence into established fact. Rule 50(a)(2) concerns specification of judgment and grounds. It does not lower the standard for entering that judgment or relieve the movant of an affirmative-defense burden supplied by substantive law.

Granite Heron's theory depends on several linked propositions: Blue Ember unreasonably declined the slot; transfer would pass the November readiness gate; the campaign would begin December 2; later testing and disposition would proceed sufficiently early; \$1,800,000 of bounded delay would be avoided; and the alternative would cost only \$300,000. A reasonable doubt about any link changes the net result.

Calder supplied no numerical success probability. The preliminary estimate was not a guaranteed cap, and staged exposure could remain after cancellation. The schedule overlapped tasks to gain time and expressly recognized critical findings, method difficulty, material shortages, or engineering failure. Blue Ember's witnesses explained why those uncertainties mattered to a validation sponsor.

The jury could credit concrete capacity without treating the most favorable completion path as inevitable. Preservation cannot supply the missing compulsion. It merely prevents Blue Ember from winning on a procedural threshold and requires the Court to apply ordinary de novo review to the evidence actually tried.

The \$300,000 verdict had a rational evidentiary basis

Jurors were not required to reveal their intermediate gross-avoidance figure. They could find a smaller probability-adjusted timing benefit, subtract necessary alternative costs, and reach \$300,000 net. They also could discount Park's assumption that only \$200,000 of the bounded delay would remain after a campaign whose final disposition extended beyond manufacturing.

Brooks's model allowed timing and risk inputs to vary separately. He agreed the option was genuine but explained that the contemporaneous materials lacked a defensible basis for assigning the full claimed success and acceleration. Calder described both capability and open work. Solis described a documented choice among an uncertain earlier path and a qualified later one.

The verdict sits between the parties' endpoints rather than outside the evidence. It did not find zero mitigation, and it did not accept the complete \$1,500,000 defense calculation. Such an intermediate response is permissible where experts share a base model but dispute probability, attribution, and the consequence of unresolved prerequisites.

The district court's conclusion that no reasonable jury could go below \$1,500,000 necessarily treated Park's successful-path inputs as conclusive. That is evidentiary weighing. The same court's conditional Rule 59 reasoning may reflect a permissible clear-weight judgment, but it cannot substitute for the more protective Rule 50 inquiry.

The alternative cost and timing were not fixed ceilings

Cobalt Finch's \$300,000 figure was a working estimate for transfer management, focused qualification, document adaptation, selected analytical work, training, engineering confirmation, and accelerated capacity. The response expressly stated that a major unknown gap could increase scope. Booking also exposed Blue Ember to staged charges if readiness work stopped the project.

Park used the entire estimate as the cost of a successful course, which was arithmetically conservative within her chosen scenario. But it was not evidence that \$300,000 capped all risk-adjusted cost across possible outcomes. A jury could account for failure exposure, duplicated staffing, or the continued need for Aurora Quay when evaluating net benefit.

Nor did December 2 equal completion. The proposal projected campaign activity near December 20 before later testing, review, and quality disposition. Comparing manufacturing start dates alone overstates acceleration unless the model consistently maps downstream milestones. Brooks criticized certainty in that mapping without denying that some time could be saved.

These variables directly affect the amount Granite Heron had to prove. If likely gross avoidance was less than \$1,800,000, or reasonable alternative expense exceeded the working estimate in probability-weighted terms, the net deduction falls below \$1,500,000. The trial evidence permitted both conclusions.

Rule 50(c) keeps the conditional ruling analytically separate

When a court grants renewed judgment and a new-trial motion is pending, Rule 50(c)(1) requires a conditional ruling. The district court complied by stating that, if JMOL were later vacated or reversed, gross damages and mitigation should be retried together. That determination has a future operative consequence but does not conduct a second trial while JMOL remains effective.

If this panel reverses renewed judgment, Rule 50(c)(2) directs attention to the conditional order and permits appellate instructions. Blue Ember preserves its position that the \$300,000 verdict was not against the clear weight and that no retrial was warranted. Granite Heron argues that the monetary subjects are intertwined and that the district court acted within its discretion.

If the panel instead affirms JMOL, the condition never activates. There is then no need to decide whether the district court abused its Rule 59 discretion or properly limited the proposed retrial. An appellate ruling on those dormant questions would add components unrelated to the judgment necessary for affirmance.

The branch's final disposition therefore must follow the JMOL result. Blue Ember requests reversal and the consequent component analysis. It agrees, however, that an affirmance path should decide only mitigation JMOL and the amended judgment, leaving the conditional order legally present but unreviewed.

Remedy must reflect the ruling actually made

Reversal of JMOL would remove the \$1,500,000 judicial deduction from the amended judgment. The Court would then determine the effect of the conditional new-trial ruling under Rule 50(c), rather than automatically restoring either existing monetary instrument as an immediately payable final recovery. Any mandate should identify the precise operative consequence.

Affirmance would produce a simpler result. The \$2,700,000 amended judgment would remain in force, no damages retrial would commence, and the conditional order would stay dormant. The Court should not describe that result as affirming the Rule 59 ruling or its scope because neither issue would have been necessary to decide.

Under either path, contract liability and shipment causation remain untouched. Granite Heron does not seek relief from those separated findings in this counterfactual record, and Blue Ember does not use mitigation to reopen them. The rejected lot, replacement costs, gross delay base, and verdict structure retain their established relationships.

The Court also should reiterate branch isolation. A counterfactual judgment cannot amend the actual appeal, and the preservation premise cannot migrate into the district documents. Any disposition operates only within the never-filed docket and must use the docket number bearing the explicit nonoccurrence designation.

Conclusion and service certification

Even with express pre-verdict preservation assumed, the evidence did not compel a \$1,500,000 deduction. Cobalt Finch offered a genuine and potentially valuable course, but program qualification, downstream timing, cost exposure, and probability remained disputed. The jury's \$300,000 net finding recognized avoidable loss while declining to assume the best possible alternative outcome.

Blue Ember requests reversal of the mitigation JMOL and vacatur of the \$2,700,000 amended judgment, followed by the component-specific treatment Rule 50(c) requires. It does not request any change to liability or causation. If the Court affirms JMOL, it should expressly refrain from deciding the dormant conditional new-trial ruling and its possible scope.

Maya Holt signs this brief for Blue Ember with authorization from Jonas Bell. Counsel certifies that the submission uses the isolated counterfactual premise, contains no undisclosed real person or event, and was served electronically on Eli Mercer and Tara Webb on March 9, 2026.

Every captioned event in this source is confined to the never-filed branch. The exact district evidence and amounts are used to train legal comparison, but no statement here changes the actual motions, creates an appellate filing elsewhere, or represents a real adjudication.